

Court No. - 2

Case :- WRIT - C No. - 4141 of 2022

Petitioner :- Naseem Akhtar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Ajai Tyagi,J.

Pleadings be completed on or before 4.4.2022.

List on 4.4.2022 as fresh.

Order Date :- 25.2.2022

Mukesh

Court No. - 3

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Petitioner :- Naseem Akhtar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"i) to issue a writ, order or direction in nature of certiorari to quash the demand notice dated nil as letter no.2063 issued by respondent no.4 (Executive Engineer Vidyut Vitaran Khand Ist U.P. Power Corporation Ist Mau) as Annexure no.7 of the writ petition.

ii) to issue a writ, order or direction in nature of mandamus directing the respondent nos.3, 4 and 5 not to harass the petitioner in pursuance of Government order dated 3.2.2021 as Annexure no.5 of the writ petition."

3. Shri Chetan Chatterjee, learned counsel for the respondent nos.2, 3 and 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of

hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 20.5.2022

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